

25TRCV00939 25TRCV00939

County: los-angeles

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Case Number: 25TRCV00939 Hearing Date: September 10, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday,
September 10, 2026

Department M Calendar No.

PROCEEDINGS

Brett Dalton Lyon, et al. v. Joshua Nordike, et al.

25TRCV00939

1. Joshua

Nordike's Demurrer to Complaint

TENTATIVE RULING

Joshua Nordike's Demurrer to Complaint is overruled.

Background

The Complaint

was filed on March 21, 2025. This is an action for partition of the following real property: 1912 Earnest Avenue, Redondo Beach, California 90278.

Meet and Confer

Defendant

set forth meet and confer declarations in sufficient compliance with CCP § 430.41. (Decl., Regis A. Guerin, ¶ 3).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the Complaint on the grounds that the cause of action for Partition fails to state facts sufficient to state a cause of action and is uncertain. CCP § 430.10(e)(f).

Code Civ. Proc., § 872.230 states:

"The complaint [for partition] shall set forth:

- (a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. In the case of real property, the description shall include both its legal description and its street address or common designation, if any.
- (b) All interests the plaintiff has or claims in the property.
- (c) All interests of record or actually known to the plaintiff that persons other than the plaintiff have or claim in the property and that the plaintiff reasonably believes will be materially affected by the action, whether the names of such persons are known or unknown to the plaintiff.
- (d) The estate as to which partition is sought and a prayer for partition of the interests therein.
- (e) Where the plaintiff seeks sale of the property, an allegation of the facts justifying such relief in ordinary and concise language."

Defendant argues that the Complaint did not set forth the legal description of the property. However, the Complaint attached as Exhibit 1, which was incorporated by reference, the grant deed of the property which sets forth the legal description of the property. "The phrase 'incorporation by reference' is almost universally understood, both by lawyers and nonlawyers, to mean the inclusion, within a body of a document, of text which, although physically separate from the document, becomes as much a part of the document as if it had been typed in directly." *Pine Terrace Apartments, L.P. v. Windscape, LLC* (2009) 170 Cal.App.4th 1, 16 (emphasis in original; internal citation omitted). Thus, the allegation setting forth the legal description of the property was adequately set forth in the Complaint.

Therefore, Defendant's Demurrer to

Complaint is overruled.

Defendant is ordered to file and
serve an Answer within 10 days of this date.

Plaintiff is ordered to give notice
of this ruling.